

not issuing out of the land, but as a thing collateral, annexed in privity to the estate of the land, and to the person touching the land, for which cestui que trust has no remedy but by subpœna in Chancery" (b).

1. **A confidence.** — It is "a confidence"; not necessarily a confidence *expressly* *reposed by one party in another, for it may be raised by implication of law: and the trustee of the estate need not be *actually* capable of confidence for the capacity itself may be supplied by legal fiction, as where the administration of the trust is committed to a body corporate; but a trust is a confidence, as distinguished from *jus in re* and *jus ad rem*, for it is neither a legal property nor a legal right to property (a).

2. **Reposed in some other.** — It is a confidence "*reposed in some other*"; not in some other than the author of the trust, for a person may convert himself into a trustee, but in some other than the *cestui que trust*; for as a man cannot sue a *subpœna* against himself, he cannot be said to hold upon trust for himself (b). If the legal and equitable interests happen to meet in the same person, the equitable is for ever absorbed in the legal. — Thus, if A. be seised of the legal inheritance *ex parte paternâ*, and of the equitables *ex parte maternâ*, upon the death of A. the heir of the maternal line has no equity against the heir of the paternal (c). And the same rule prevails as to leaseldors for lives (d): as if the legal estate in a freehold lease be vested in a husband and his heirs, in trust for the wife and her heirs, the child who is the heir of both, and takes the legal estate *ex parte paternâ* and the equitable

(b) Co. Lit. 272, b. Law and equity are now administered in all the courts alike.

(a) Bacon on Uses, 5. See *Wainwright v. Elwell*, 1 Mad. 634.

(b) *Goodright v. Wells*, Dougl. 747, per Lord Mansfield; *Conolly v. Conolly*, 1 Ir. Rep. Eq. 383, per Christian, L. J.

(c) *Selby v. Alston*, 3 Ves. 339; *Goodright v. Wells*, Dougl. 747, per Lord Mansfield; *Wade v. Paget*, 1 B. C. C. 363; S. C. 1 Cox, 76;

Phillips v. Brydges, 3 Ves. 126, per Lord Alvanley; *Finch's case*, 4 Inst. 85, 3d resolution; *Harmood v. Oglander*, 8 Ves. 127, per Lord Eldon; *Conolly v. Conolly*, 1 Ir. Rep. Eq. 376. These cases, except the last, were all before the Inheritance Act, 3 & 4 W. 4. c. 106; but which will probably be held not to vary the law. So now decided *Re Douglas*, 28 Ch. D. 327.

(d) *Creagh v. Blood*, 3 Jones & Lat. 133.